



File No.: PS/00388/2022

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: Ms. A.A.A. (hereinafter the complainant) filed a complaint with the Spanish Agency for Data Protection on 01/06/2021. The complaint is directed against CAIXABANK S.A. with NIF A08663619 (hereinafter, the respondent). The reasons for the complaint are as follows: that since 11/02/2021, she has requested on several occasions from the respondent information regarding an account of her minor daughter, for whom she has exclusive guardianship and custody, with both the father and mother of the minor listed as legal representatives on said account. She states that, after receiving a response indicating that they could not provide such information to an email address that was not registered in their database, on 25/02/2021 she called the respondent reiterating her request for information, and the operator indicated that the information was blocked, although she forwarded an email to the coordination department to contact the complainant and provide her with more information regarding this matter. On the same day, she received a call from the director of a different office to provide her with information about another of her daughters, so the complainant informed him of the error and indicated that, furthermore, she had not previously identified herself with her ID. Finally, the aforementioned director confirmed that the account of the daughter for whom she was indeed inquiring had been canceled and that she should go to the corresponding office to obtain more information. On 26/02/2021, she went to that office, where the father of the minor works and from whom she is in the process of divorcing, and after several hesitations, they finally indicated that the account was canceled by the father of the minor and that a transfer was made to one of his accounts. On 03/03/2021, she requested access to certain documentation related to the account, as well as to the recordings of the calls made regarding this matter to the Customer Service Center (SAC), without being provided with the recordings. Additionally, she filed several complaints (on 23, 24, and 31/03/2021) expressing her disagreement with the cancellation of her daughter's account, which bore only the father's signature, as well as the obstruction in requesting information, without having received a response.

She provides the following documentation:

- ID of the complainant's minor daughter
- Copy of various emails between 11 and 23/02/2021 requesting information about the canceled bank account addressed to the branch manager of BANKIA, S.A. where this account was opened.
- Copy of the email from the complainant's lawyer sent to the branch manager of BANKIA, S.A. where this account was opened, requesting various information including the recordings of the complainant dated 25/02/2021. This document states that the requested information has been provided by the entity except for the recordings.

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- Copy of the email dated 23/04/2021 with a complaint addressed to BANKIA, S.A.
- Forwarding of a copy of the previous email to the entity CAIXABANK, S.A. following the merger by acquisition of BANKIA, S.A. by CAIXABANK, S.A.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), on 01/07/2021, the aforementioned complaint was forwarded to the responding party, so that they could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP),

was recorded on 01/07/2021 as evidenced by the acknowledgment of receipt in the file.

On 30/07/2021, this Agency received a written response from the responding party stating that the bank account in question was held in the name of the complainant's daughter, who is a minor, with her parents listed as authorized signatories on the account.

Regarding the recording of the calls, a transcript of the calls was made available to the complainant through the office if she so desired.

Concerning the fact of receiving a call from the \*\*\*OFFICE.1 of CaixaBank to inform her about another of her minor daughters, about whom she had not requested any information at any time, it was an unintentional error by the customer service operator, who directed the instruction to the office where an account is opened in the name of another of her daughters. The email sent by the operator to the \*\*\*OFFICE.1 is on record, in which he requests this office to contact the complainant regarding the account opened in the name of her other daughter, the client's interest being information related to the account opened in the name of the minor daughter.

The error, in any case, is unintentional and does not imply any type of data transfer to third parties, in addition to the fact that the recipient of the information, the complainant, has the right to the information in her capacity as mother and legal representative. Under no circumstances has harm been caused to the affected party.

Subsequent to the response to the forwarding of the complaint, she again requests the recordings, and they are not provided to her. According to her, the recordings demonstrate that she never identified herself with her ID but with that of her daughter, the account holder in question. She suspects that upon receiving the request for information about her daughter's account (which has been canceled by the father, with whom she is in the process of divorce), there is an attempt to conceal this information by providing her with the information about the account of the other daughter (which they attribute to an error).

THIRD: On 25/10/2021, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

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FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

It is confirmed, according to the ID, that the daughter of the complainant, whose account was canceled solely by one of the parents, is under 14 years of age.

Regarding the access to the information requested by the complainant from the entity, it was provided except for the recordings, on which the responding party informed the complainant that they were available at the office \*\*\*OFFICE.2 of BANKIA, S.A., at \*\*\*ADDRESS.1, \*\*\*LOCALITY.1, where the minor's current account was located, according to the response from the Customer Service (hereinafter, SAC) included in the documentation submitted by the responding party. There is no record that the complainant has presented herself at this office to collect it.

Requested from the responding party were copies of the recordings of the telephone calls made by the complainant to the SAC, dated 16/03/2022 and registration numbers REGAGE22e00007574995, REGAGE22e00007575005, REGAGE22e00007575017, REGAGE22e00007575028, and REGAGE22e00007843841, a response letter sent by the responding party presenting the requested recordings.

Once the recordings were analyzed, the following conclusions were drawn:

- Call on 25/02/2021 at 10:27 AM: It is verified that in the first call to customer service, the complainant only provided the ID of her minor daughter. The bank account of this daughter was blocked, so the

customer service agent could not access the data of this account. The agent indicates that they will forward the incident to "coordination" via email and that the complainant would receive a call with the information they could provide.

- Call on 25/02/2021 at 12:38 PM: In the second recording, the complainant states that she received a call from the SAC (one hour after the call in the previous paragraph) to inform her, incomprehensibly, about the data of her older daughter. Regarding access to the data of her minor daughter's account, it is noted that the account no longer exists and the personal data related to this account are blocked since the customer service agent no longer has any data of any account with the complainant's ID, nor of her minor daughter.

Requested from the responding party were the possible active products of the complainant's older daughter and to confirm the cancellation date of the products that were no longer active, with a response received on 01/06/2022 sent from C/ Jorge Juan, 6

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CAIXABANK informing that the only product of this claimant's daughter was canceled on 10/01/2020. They attach a copy of the cancellation document.

Regarding the association of the claimant's other daughter with the claimant according to the call received from Customer Service on 25/02/2021 (after the first call), which the claimant finds incomprehensible, the cause of the identification error attributed by the responding party to an unintentional mistake by the SAC agent could not be determined. However, it is established, based on the information reflected in the previous paragraph, that once the contractual relationship with the responding party concerning the claimant's eldest daughter ended in January 2020, her personal data was not blocked and continued to be processed by the SAC, at least until 25/02/2021, the day on which the SAC made a phone call to inform her about the data of this daughter, instead of the information related to the checking account of the youngest daughter, which she had inquired about. Regarding the cancellation of the checking account of the claimant's youngest daughter, in annex number four included in the complaint submitted to this Agency, there is a response from the director of the \*\*\*OFFICE.2 of BANKIA, S.A., at \*\*\*ADDRESS.1, \*\*\*LOCALITY.1, dated 03/03/2021, in which she informs the claimant that the checking account of her youngest daughter was canceled on 28/01/2020 by the other parent, with the balance in that account being transferred to the checking account of that parent.

Regarding this cancellation, it is verified that, although the signatures of both parents were requested for the opening of the checking account originally at Banco Mare Nostrum-Caja Murcia (subsequently acquired by Bankia and finally by CaixaBank), for the cancellation order requested from CaixaBank, only the father's signature was required, as he was an employee at the CaixaBank branch where the checking account of the claimant's youngest daughter was held. Therefore, it is established that the responding party canceled the checking account of the claimant's youngest daughter solely with the consent of the father of the minor and without the claimant's knowledge.

FIFTH: After the notification of the initiation agreement, the respondent requested an extension of the deadline to respond on 08/09/2022; an extension that was granted by a document dated 09/09/2022. On 15/09/2022, the respondent submitted a written statement of allegations stating, in summary: the defenselessness caused by setting the amount of the sanction in the initiation agreement; the non-existence of an infringement of Article 15 of the GDPR, considering that the right of access was addressed in accordance with personal data protection regulations; the non-existence of an infringement of Article 32.1 of the GDPR since, in his capacity as the legal representative of the minors, the claimant's access to the information of those accounts is absolutely legitimate; that the Agency pronounces on civil matters, when it is itself that has established that these issues do not fall within its scope of competence; that the aggravating factors that this Agency improperly and unjustifiably considers to be concurrent are not applicable, and on the contrary, there are mitigating circumstances that have not been considered.

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SIXTH: On 21/03/2023, it was agreed to open a period for the practice of evidence, agreeing on the following:

- To consider reproduced for evidentiary purposes the claims filed by the claimants and their documentation, the documents obtained and generated by the Inspection Services that are part of the file.
- To consider reproduced for evidentiary purposes the allegations to the initiation agreement presented by the respondent.

SEVENTH: On 05/04/2023, a Resolution Proposal was issued stating that the Director of the Spanish Agency for Data Protection should sanction the respondent for violation of Article 15 of the GDPR, classified under Article 83.5.a) of the GDPR, with a fine of 35,000 euros (thirty-five thousand euros) and, for a violation of Article 32.1 of the GDPR classified under Article 83.4.a) of the GDPR, with a fine of 25,000 euros (twenty-five thousand euros). An Annex was attached with the documents comprising the administrative file.

The respondent requested a copy of the file on 11/04/2023, which was sent to him by letter on 13/04/2023. He also requested an extension of the deadline for allegations on 19/04/2023, which was granted by a letter from the instructor dated 21/04/2023.

On 27/04/2023, the respondent submitted a written statement of allegations in which he considered the allegations made throughout the procedure to be reproduced and, furthermore, reiterated that there was no violation of Article 15 of the GDPR, nor any infringement of Article 32 of the aforementioned Regulation, requesting the filing of the procedure.

EIGHTH: From the actions taken in this procedure, the following have been accredited:

#### PROVEN FACTS

FIRST. On 01/06/2022, a letter from the claimant was received by the AEPD stating that she had requested information on several occasions from the respondent regarding an account of her daughter B.B.B., a minor, of whom she has exclusive custody and guardianship, and both parents are representatives; after receiving a response that they could not provide such information to an email address not registered in the database, she contacted the respondent reiterating her request for information, and the operator indicated that such information was blocked, although she sent an email to the coordination department to have them contact the claimant and offer her more information regarding this matter; that day she received a call from the manager of a different branch providing her with information about another of her daughters, warning her of the error made; finally, the manager confirmed to her that the account of the daughter she was inquiring about had been canceled and that she should go to the corresponding branch to obtain more information; in that office, the father of the minor works, with whom she is in the process of divorce; finally, they informed her that the account was canceled by the father, with funds being transferred to one of his accounts; she has requested access to documentation related to the account, as well as to

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the recordings of the calls made regarding this matter to the Customer Service Center (SAC), without having been provided the recordings; she has also submitted writings expressing her disagreement with the cancellation of her daughter's account, as it only bears the father's signature, as well as regarding the obstruction encountered when requesting information, without having received a response.

SECOND. It is recorded that emails exchanged with the branch manager of the respondent have been submitted, requesting information about the minor's account.

In the email dated 11/02/2021, it is stated:

“(…)

Through this email, I request information regarding the bank account of my daughter B.B.B..., with ID number..., as I was listed as the account holder along with C.C.C. and I am unaware of both the account number and any other information and/or incidents that may have occurred.

“(…)

On 18/02/2021, the claimant again addressed the branch manager, stating:

“(…)

Through this email, I inform you that I am still waiting for you to provide me with information...

“(…)

On 23/02/2021, the claimant received a response from the branch manager with the following content:

“I apologize, but we cannot provide information through this channel to an email address that is not in our database...”

On 23/02/2021, the claimant again addressed the previous email:

“In response to your previous email and, notwithstanding understanding that my personal information, which I already included in my previous email regarding my National Identity Document, as well as that of my daughter, is duly accredited, I request that you inform me as soon as possible whether I need to make the request by attaching and scanning a signed letter with all my details and my request for information (given the situation in prevention of COVID infections, this is usually the standard practice), or if, on the contrary, you grant me an appointment in your office to address this matter at a time that is most convenient for you. However, I would appreciate, given the situation, my great concern, as well as the delay in your negative response to obtaining such information, that it be as soon as possible.”

THIRD. On 23/02/2021, the claimant addressed the Customer Service via email regarding the cancellation of the contract for my first account of her daughter, contract no. \*\*\*CONTRATO.1, stating:

“Through this email, I, the claimant, with ID number ..., am sending you the Written Complaint that I present as a claimant as of today, duly signed, as well as the attached documents that accompany it...”

FOURTH. The Written Complaint dated 23/03/2021 is recorded, communicating to the respondent the incidents that occurred as outlined in the first fact, as well as copies of the ID cards of the claimant and her minor daughter B.B.B..

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FIFTH. An order from the Court of Violence against Women No. 1 of \*\*\*LOCALIDAD.1 is recorded, in the proceedings for provisional measures, which states:

“(…)

- Custody of the daughter is granted to the mother, with parental authority shared by both parents.

“(…)

SIXTH. On 01/03/2021, the legal representation of the claimant sent, on her behalf, an email to the respondent requesting all documentation related to the cancellation of the contract My First Account no. \*\*\*CONTRATO.1, whose holder is the minor. They also requested a copy of the recordings of the phone calls made on 25/02/2021.

SEVENTH. A response from the respondent dated 03/03/2021 is recorded, stating: “In response to the claimant's request for information regarding the current and/or canceled bank accounts of her daughter B.B.B.... in our entity, and after consulting the records held by this branch, I inform you that:

There is only a record of a Children's Savings Book opened at Banco Mare Nostrum on October 19, 2017, with customer account code no. \*\*\*CONTRATO.2, with B.B.B. as the holder, with ID number ... and as legal representatives Mr. C.C.C. with ID number ... and the claimant, with ID number ...

This account was canceled while already at Bankia with account number \*\*\*CONTRATO.1, on January 28, 2020, by the legal representative Mr. C.C.C.

The resulting balance from the cancellation amounted to €480.00, which was transferred to a current account opened at this entity, whose ownership corresponds to Mr. C.C.C.”

EIGHTH. The Children's Savings Book contract no. \*\*\*CONTRATO.2 is recorded, showing the minor B.B.B. as the holder and the parents as representatives, signed in \*\*\*LOCALIDAD.1 on 19/10/2017.

NINTH. The cancellation of the My First Account contract, dated 28/01/2020, signed by the father of the minor, is recorded, stating: “In accordance with the agreement in contract no. \*\*\*CONTRATO.1 My First Account dated October 19, 2017, the client requested the cancellation of the same on January 28, 2020.”

TENTH. A letter from the claimant dated 11/03/2021 addressed to the respondent is recorded, in which she requests a copy of the recordings of the calls made to the customer service phone on 25/02/2021.

ELEVENTH. The response offered by the respondent to the claimant in a letter dated 09/04/2021 is recorded, in which it states:

“(…)

Regarding a possible breach of data protection regulations in the call received from office

\*\*\*OFICINA.1, we have requested a report from the Call Center, and they indicate that in the call of 25/02/2021 at 10:27 hours, the operator, after asking for the ID number of the minor, informed her that...

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There were open products in your name, so no information appeared for you, but the managing office would call you to provide it.

Apparently, said operator made an inquiry about canceled accounts in the name of B.B.B. to ascertain the identification of all parties involved, verifying that you were the holder of accounts at the office \*\*\*OFFICE.1, for which reason they requested this office to contact you, although making an error regarding the identification of the minor.

In the file of the present claim, there is a transcription of the calls that the office \*\*\*OFFICE.2 can provide, if you wish.

“(…)

TWELFTH. There is a response offered by the respondent to the claimant in a document dated 29/07/2021, in which it states:

“In relation to your request, we reiterate the content of the response made by the Customer Service on April 9, 2021, which addresses your request. Regarding the part related to data and your interest in knowing whether a ‘possible data protection crime’ had occurred, as indicated to you by the aforementioned Customer Service, no crime has been committed, given that as you are the mother of both minors in your capacity as legal representative, you have the right to know the information of both, being an unintentional error on the part of the operator who attended you, by providing the notice for you to be contacted, to the office where your daughter D.D.D.'s account is open and not to the office of your other daughter B.B.B., in which you were interested.

THIRTEENTH. There is a document provided by the respondent, the email sent by the operator to the office \*\*\*OFFICE.1, undated, in which they request to contact the claimant regarding the account opened in the name of her daughter D.D.D.

FOURTEENTH. The claimant in a document dated 09/11/2021 reiterates her “REQUEST to require the AEPD from CaixaBank the recordings and transcription of the calls dated 25/02/2021. The AEPD will verify through the telephone recordings and their transcription that in my call to CaixaBank Customer Service on that day at 10:27 hours, I never identified myself with my personal ID and only provided the name and ID of my minor daughter with ID .., which makes the response provided by CaixaBank totally incoherent, since at no time could the operator link my ID with that of my other daughter, since I never provided it...”

FIFTEENTH. On 15/03/2022, the respondent, at the request of the AEPD, provided copies of the recordings of the telephone calls made to CaixaBank Customer Service at the number \*\*\*PHONE.1

dated 25.02.2021 made from the mobile number \*\*\*PHONE.2 of the claimant. In them, there is no mention of any request regarding the account of D.D.D., daughter of the claimant, but rather information related to B.B.B., the claimant's minor daughter.

SIXTEENTH. It is also recorded that the Cancellation of the contract My first account, dated 10/01/2020, signed by the mother and whose holder was D.D.D., states:

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“In accordance with the agreement in contract no. \*\*\*CONTRACT.3 My first account dated January 8, 2015, the client requested on January 10, 2020, the cancellation of the same.”

SEVENTEENTH. And in a document dated 31/05/2022, the respondent informed that: “D.D.D. with ID \*\*\*NIF.1 currently has no active products in this Entity. Our systems show that she was the holder of a single product, contract number \*\*\*CONTRACT.3 (My first account), which was canceled on January 10, 2020.”

## LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures.”

II

The reported facts are specified in the absence of a response to the request for access to the data and information of the account of the minor daughter requested by her mother, with a breach of security measures to determine the holder of the requested data (as the data of her other daughter's account were provided), which could violate data protection regulations.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

Firstly, Article 15, Right of access of the data subject, establishes that:

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“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data and to the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

d) where possible, the envisaged retention period for the personal data or, if not possible, the criteria

used to determine that period;

e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when the personal data have not been obtained from the data subject, any available information as to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others."

Meanwhile, in the LOPDGDD, regarding the right of access, Article 13 states that:

"1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679.

When the controller processes a large amount of data relating to the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the data."

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personal data that ensures, permanently, access to its entirety. For such purposes, the communication by the responsible party to the affected individual regarding how they can access said system will suffice to consider the request for the exercise of the right as attended to.

Notwithstanding, the interested party may request from the responsible party the information referred to in the terms provided in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is a legitimate reason for it.

4. When the affected party chooses a means other than the one offered that entails a disproportionate cost, the request will be considered excessive, and the affected party will assume the excess costs that their choice entails. In this case, only the satisfaction of the right of access without undue delays will be required from the data controller.

### III

1. Firstly, the respondent alleges a lack of defense arising from the determination of the amount of the sanction in the initiation agreement, as the sanctioning body proceeds ab initio to set the amounts of the imposed sanctions, considering that this constitutes blameworthy behavior as it affects the exercise of their rights.

It should be noted that the National Court, in its Judgment of 09/12/2022, which the respondent must



be well aware of as the appellant in the administrative contentious matter raised and which was dismissed, addressed these and other issues such as the incompetence of the person signing the resolution:

"FOURTH.- Secondly, it advocates the nullity of the challenged resolution due to the violation of the appellant's right to effective judicial protection and defense, having set in the initiation agreement "in audita parte" the amount of the sanction to be imposed, which ultimately coincides with that contained in the sanctioning resolution. Furthermore, there is a contamination of the inspection action by the competent body to resolve, which ab initio shows the instructing body the terms to which, in its opinion, the result of the procedure should be confined.

It points out that Law 29/2015, of October 1, on Common Administrative Procedure of Public Administrations, does not introduce any novelty in Article 64 regarding the regulatory regime of the initiation agreements of sanctioning procedures and that the literalness of Article 85 does not, in its opinion, constitute an authorization to prejudge the case in the initiation agreement, with the consequent breach of the rights of the accused in the procedure.

Regarding the determination of the sanction ab initio, the initiation agreement of October 7, 2020 - pages 43 and following of the procedure - in addition to the appointment of the instructor, the relationship of facts, and their qualification, indicates in its dispositive 4 "THAT for the purposes provided in Article 64.2.b) of Law 39/2015, of October 1, Common Administrative Procedure of Public Administrations (hereinafter LPACAP), the sanction that may be...

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the corresponding administrative fine would amount to €50,000, without prejudice to what results from the instruction."

Additionally, in its device 5, it is agreed to notify the aforementioned agreement to BANKIA S.A., granting it a period of ten business days to submit allegations and propose any evidence it deems appropriate, and it is indicated that "In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure (...) Likewise, it may at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, in accordance with the provisions of Article 85.2 of the LPACAP, which will imply a reduction of 20% of its amount (...). The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure."

Well, the aforementioned Article 64 establishes in its section 2 that the initiation agreement in sanctioning procedures must contain, "at least," for what concerns us here:

"b) The facts that motivate the initiation of the procedure, their possible qualification, and the sanctions that may correspond, without prejudice to what results from the instruction (...)."

d) Competent body for the resolution of the procedure (...), indicating the possibility that the alleged responsible party may voluntarily acknowledge their responsibility, with the effects provided for in Article 85."

That is to say, it is required that the initiation agreement includes, at least, the facts, their possible qualification, and the possible sanctions to be imposed, as well as to inform, from the outset, of the possibility of applying the reductions allowed by Article 85 of the LPACAP, which presupposes an initial provisional determination of the sanctions that may correspond, without prejudice to what results from the instruction. This indication refers to the section d) of the aforementioned Article 64.2, which was not contemplated in the initiation agreement regulated in Article 13 of Royal Decree 1398/1993, of August 4, which approves the Regulation of the Procedure for the Exercise of the Sanctioning Power, repealed by the sole repeal provision of Law 39/2015.

For its part, Article 85 LPACAP states:

1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative with each other. The aforementioned reductions must be determined in the notification of

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The initiation of the procedure and its effectiveness shall be conditional upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction." In light of the aforementioned provisions and following the criteria of the SAN, Sec. 3ª, of June 19, 2019 (Rec. 447/2018) in a case similar to the present one: "There is therefore no legal impediment for the initiation agreement to contain an initial and provisional specification of the sanction(s) that may arise from the investigated facts within those provided for by law, which does not imply a reduction of the rights of the party under investigation, as this is done 'without prejudice to what results from the instruction (...) and this initial and provisional specification, in the interest of speed and effectiveness in administrative action, allows for voluntary payment from the very moment of initiation (...). There is no legal basis to understand that the specification of the sanction and the operation of voluntary payment cannot occur until the proposal for resolution after the corresponding instruction."

That is to say, the competence to determine the initiation agreement of the sanctioning procedure establishes the obligation that such agreement must contain all the circumstances provided for by the applicable regulations, including the provisional determination of the sanction that may correspond, which shall be without prejudice to what results from the instruction of the procedure. The instruction of the procedure is the responsibility of the instructor and the secretary, who were designated in device 2 of the aforementioned agreement, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

It is therefore up to the interested party, in view of the sanctioning agreement, to request any evidence they deem appropriate, make allegations, etc., without the existence of defenselessness being appreciable and assessing the alleged violation; furthermore, the claimant has at no time shown a willingness to acknowledge responsibility for the sanctioned infringement and to avail themselves of the effects provided for in Article 85 of the LPACAP."

2. Secondly, regarding the possible controversy raised concerning the cancellation of the minor's account exercised by the father without the participation of the mother, who had custody, this is a matter that exceeds the competencies of this management center.

3. The GDPR allows for the exercise of rights of access, rectification, opposition, erasure ("right to be forgotten"), limitation of processing, portability, and not to be subject to individualized decisions before the data controller.

If the controller does not process the request, they must inform of the reasons for their inaction and the possibility of appealing to a Supervisory Authority if no response has been received.

In the present case, although the claimant had to address the respondent numerous times to process the right of access to information related to her minor daughter B.B.B.'s account, it can be considered addressed in light of the proven facts in which the response offered to the claimant on 03/03/2021 is recorded:

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"Considering the request of the claimant in which she requests information about current and/or canceled bank accounts of her daughter B.B.B.... in our entity and having consulted the records held by this branch, I inform you that:

There is only a record of a Children's Savings Book opened at Banco Mare Nostrum on October 19, 2017, with customer account code nº \*\*\*CONTRACT.2, with B.B.B.... as the account holder, with ID ... and as legal representatives Mr. C.C.C. with ID ... and the claimant, with ID ...

This account was canceled while already at Bankia with account number \*\*\*CONTRACT.1, on January 28, 2020, by the legal representative Mr. C.C.C..

The resulting balance from the cancellation amounted to €480.00, which was transferred to a current account opened at this entity, whose ownership corresponds to Mr. C.C.C..

And also that "It is recorded that the contract for Children's Savings Book nº \*\*\*CONTRACT.2 was submitted, where the minor B.B.B. is listed as the holder and the parents as representatives, signed in \*\*\*LOCALIDAD.1 on 19/10/2017".

On the other hand, as already occurred with the banking information related to the minor, the recordings of the two calls made to the Customer Service Center (SAC) by the claimant had to be requested both on 01/03/2021, by the legal representation, and on 11/03/2021 by the claimant, not receiving a response until 09/04/2021 through a letter indicating that the transcription of the same was made available to her:

"(...)

In the file of this claim, the transcription of the calls that the office \*\*\*OFFICE.2 can provide is found, if desired.

(...)"

Therefore, it has been established that the respondent sent the claimant the requested information regarding the banking information related to her minor daughter B.B.B. and, regarding the recordings containing the conversations held with the SAC operator, the transcription of the same was made available to her, thus fulfilling the exercise of the aforementioned right.

From the above, it follows that the respondent has not violated Article 15 of the GDPR, an infringement classified in Article 83.5 a) of the GDPR.

#### IV

Secondly, Article 32 of the GDPR "Security of processing" establishes that:

"1. Taking into account the state of the technology, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
  - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
  - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
  - d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.
4. The controller and the processor shall take measures to ensure that any person acting under the

authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

V

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

“4. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.

(...)”

For its part, the LOPDGDD in its Article 73, for the purposes of prescription, qualifies as "Serious Infractions":

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

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g) The breach, as a consequence of the lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of Article 32.1 of Regulation (EU) 2016/679.”

(...)

1. The GDPR defines personal data security breaches as all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.”

From the documentation in the file, there is clear evidence that the respondent has violated Article 32 of the GDPR, as a security incident occurred when the account data of a third party (the claimant's daughter) was provided over the phone without having first verified the identity of the person to whom the data was disclosed.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the data controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures should be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures. In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their

implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data.”

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transmitted, stored, or otherwise processed, or unauthorized communication or access to such data, which may particularly cause physical, material, or immaterial damages.

2. As noted in previous grounds of the claimant's statements and the documentation provided in the file, it follows that after requesting access to her daughter's data without it being addressed, on 25/02/2021, she called the customer service of the respondent reiterating her request for information, being informed by the acting operator that the account was canceled, sending an email to the coordination department for them to contact the claimant and provide her with information in this regard, and on that same day, the claimant received a call from the director of an office different from the one assigned to the account to provide her with information about another of her daughters, without requesting any proof of her identity.

The infringed provision establishes how the security of the processing must be articulated in relation to the specific security measures that must be implemented, so that taking into account the state of the art, the costs of application, and the nature, scope, context, and purposes of the processing, as well as the variable probability and severity risks for the rights and freedoms of individuals, the data controller and the processor shall apply appropriate technical and organizational measures to ensure a level of security that is adequate to the risk and that includes, among other issues, ensuring that when data relating to a person is requested, access to it corresponds to and is related to the same person of whom they are the holder and not to that of a third party, even if this person is also the claimant's daughter and has an open account with the same entity.

The same respondent in a letter dated 29/07/2021 acknowledges the infringement committed stating that: “In relation to your request, we reiterate the content of the response made by the Customer Service on April 9, 2021, which responds to your request. Regarding the part related to data and your interest in knowing whether a 'possible data protection crime' had occurred, as indicated to you by the aforementioned Customer Service, no crime has been committed, since being the mother of both minors in your capacity as legal representative, you have the right to know the information of both, being an unintentional error on the part of the operator who attended you, by providing the notice for them to contact you, to the office where your daughter D.D.D.'s account is open and not to the office of your other daughter B.B.B., in which you were interested.”

And in the recordings that were finally sent at the request of the acting inspector, it does not appear, in light of the listening to them, that the claimant requested or provided any data of her daughter D.D.D. since the information she was interested in was related to the account of her other daughter, for whom she had guardianship and custody, B.B.B.; information that had been requested both in previous and subsequent writings.

The respondent has argued that a human error cannot be turned into a security breach since the claimant accessed data to which she had a legitimate right to access, although they were not the ones she had requested.

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However, this is not about turning a mistake into a security incident, but rather that the protocol, procedure, system, or measures established by the respondent have failed, allowing access to third-party data that had not been requested by the claimant.

3. The responsibility of the respondent is determined by the security breach highlighted by the claimant, as they are responsible for making decisions aimed at effectively implementing the appropriate technical and organizational measures to ensure a level of security adequate to the risk, to safeguard the confidentiality of the data, restore its availability, and prevent access to it in the event of a physical or technical incident.

4. In their written submissions to the Proposal, the respondent insists that Article 32.1 of the GDPR has not been violated and that there has been no leakage or unauthorized access to the data, and in this regard, the ruling of the Supreme Court on 15/02/2022 clearly establishes that the obligation imposed by Article 32 to adopt technical and organizational measures aimed at ensuring confidentiality is an obligation of means and not of results.

However, the respondent themselves in their writing claims that there was an error in management by providing the claimant with documentation different from that requested.

On the other hand, it is true that the Supreme Court in its ruling states that: "The obligation to adopt the necessary measures to ensure the security of personal data cannot be considered an obligation of result, which implies that once a leakage of personal data to a third party occurs, there is responsibility regardless of the measures adopted and the activity carried out by the data controller or processor.

In obligations of result, there is a commitment to achieve a specific objective, ensuring the achievement of the proposed result, in this case, to guarantee the security of personal data and the non-existence of leaks or security breaches.

In obligations of means, the commitment undertaken is to adopt the technical and organizational means, as well as to carry out diligent activity in their implementation and use, which tends to achieve the expected result with means that can reasonably be classified as suitable and sufficient for its achievement; hence they are referred to as "obligations of diligence" or "behavioral obligations."

The difference lies in the responsibility in each case, as while in the obligation of result one is liable for a harmful result due to the failure of the security system, whatever its cause and the diligence used. In the obligation of means, it is sufficient to establish technically adequate measures and implement and use them with reasonable diligence.

In these latter cases, the sufficiency of the security measures that the controller must establish must be related to the state of technology at any given time and the level of protection required in relation to the personal data processed, but a result is not guaranteed."

But it is also true that the Court confirms that the design of the necessary technical and organizational means is not sufficient, as their correct implementation and appropriate use are also necessary.

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Therefore, in accordance with the above, it is estimated that the respondent would be responsible for the infringement of Article 32.1 of the GDPR, an infringement classified under Article 83.4.a).

VI

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;

- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
  - d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
  - e) any previous infringement committed by the controller or processor;
  - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
  - g) the categories of personal data affected by the infringement;
  - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
  - i) when the measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
  - j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
  - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.
- In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

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"2. According to the provisions set forth in Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement of Article 32.1 of the GDPR, classified under Article 83.4.a) of the GDPR for which the respondent is held responsible, the following factors are initially considered as aggravating circumstances:

The nature, severity, and duration of the infringement: the facts revealed seriously affect a fundamental issue in data protection, which is the establishment of necessary and adequate technical and organizational measures, the breach of which is classified as serious; it is obvious that the technical and organizational measures implemented affect the security of the processing, as data relating to a person, a minor, is requested, and access is ultimately provided to data of another person, her sister, for whom no information had been requested.

As previously noted, data concerning minors have been affected (Article 83.2, g) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of data of both clients and third parties. In the activity of the respondent entity, the processing of personal data is essential, so given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The intentionality or negligence in the infringement; as the respondent has acted with serious lack of diligence in allowing access to data that had not been requested. Connected with the degree of

diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into force, its pronouncement is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of client and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is necessary to insist on the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2, b) of the GDPR).

Business volume or activity of the entity, as it is one of the three leading financial entities in the national market with a net profit during the fiscal years 2021 and 2022 of 4,801 and 3,145 million euros respectively (Article 83.2, k) of the GDPR).

As mitigating circumstances:

- The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity. On 25/03/2021, a merger deed by absorption of Bankia (absorbed entity) and Caixabank (absorbing entity) was granted, with the extinction of the former and the bulk transfer by universal succession of all its assets, liabilities, rights, and obligations.

In accordance with these factors, it is deemed appropriate to impose a sanction of 25,000 euros on the respondent.

IX

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are listed in Article 58.2, paragraphs a) to j).

Article 83.5 of the GDPR establishes an administrative fine (Article 58.2.i) for the behaviors classified therein, without prejudice to the fact that, as provided in Article 83.2 of the GDPR, administrative fines may be imposed together with other corrective measures provided for in Article 58.2 of the GDPR.

Having confirmed the infringement, it is appropriate to impose on the controller the adoption of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame."

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In the present case, the respondent is required to, within one month from the notification of this resolution:

- Provide evidence of the adoption of appropriate measures to prevent incidents like those that have led to the opening of this sanctioning procedure in the future, avoiding security incidents such as the one indicated by submitting documentation from third parties for which no information had been requested.

It is warned that failure to comply with this requirement may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the opening of an additional administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CAIXABANK S.A., with NIF A08663619, a penalty of €25,000 (twenty-five



thousand euros) for an infringement of article 32.1 of the GDPR classified under article 83.4.a) of the GDPR.

SECOND: TO NOTIFY this resolution to CAIXABANK S.A.

THIRD: To warn the sanctioned party that they must pay the imposed penalty once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí  
Director of the Spanish Agency for Data Protection  
C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es